PEDDY HILLALIUS CHIGUNDURU
versus
ARROLA TAKUDZWA TENDAI IDEHEN
and
OMOSOGIE RUDO IDEHEN
and
OSARETIN TANAKA FEMI IDEHEN
and
MAVIS SHORAI NZARA
and
CLAUDIOUS NHEMWA N.O
(in her capacity as the Executor Dative in the Estate of Late Wilson Madziva)
and
PLOTMART TRADING (PRIVATE) LIMITED
and
THE REGISTRAR OF DEEDS
and
THE MASTER OF THE HIGH COURT
and
THE SHERIFF OF ZIMBABWE

HIGH COURT OF ZIMBABWE
WAMAMBO J
HARARE**,** 5 June 2026, 3 July 2026

Urgent Chamber Application

K P Shamu and T J Madotsa, for the applicant
T Magwaliba with R Maphosa, for the 1st, 2nd, 3rd and 4th respondents
C T Nhemwa, for the 5th respondent
P Fanti, for the 6th respondent
No appearance for the seventh to 9th respondents

WAMAMBO J: This is an urgent chamber application for stay of execution of an order under R-HCH 3261/23 handed down under judgment HH449/25 pending hearing of the application for condonation for late filing of an application for correction of a judgment in case numbers HCH 1427/26 and HCH835/26.

FACTUAL BACKGROUND

It is the applicant's case that the first to fourth respondents filed an application in terms of section 14 of the High Court Act [*Chapter 7:06*], under case number HCH 3261/23.

In that application, the first to fourth respondents sought, in substance, a declarator to the effect that they are the rightful owners of immovable property described as a piece of land situate in the District of Salisbury, being the remainder of Subdivision A of Subdivision F of Quinnington of Borrowdale Estate, measuring 4 138 square metres.

The applicant further avers that the first to fourth respondents also sought declaratory relief that the agreement of sale concluded between the fourth respondent and the late Wilson Madziva dated 10 May 1999, as well as the subsequent agreements of sale between the late Wilson Madziva and the sixth respondent, and the agreement between the sixth respondent and the applicant, be declared null and void.

The applicant additionally contends that, in the proceedings under HCH 3261/23, the first to fourth respondents further sought an order for the demolition of the existing structure on the property.

The applicant further avers that, from the commencement of the proceedings in HCH 3261/23 up to 4 March 2026, he held title to the immovable property in question under Deed of Transfer number 2494/2022. He states that he purchased the property from the sixth respondent in July 2011 and indicates that he has been residing on the property since that time. The applicant further avers that the matter under HCH 3261/23 was heard before KATIYO J and that judgment was delivered under case number HH449/25 in favour of the first to fourth respondents.

Aggrieved by that outcome, the applicant avers that he and the sixth respondent lodged an appeal under SC 652/25. However, that appeal was deemed abandoned for failure to serve the Registrar of the High Court with the notice of appeal. The applicant further states that, thereafter, he sought to reinstate the said appeal by way of various applications before the Supreme Court, but those applications were not granted. The applicant further avers that, on 16 February 2026, the appeal under SC 656/25, lodged by the sixth respondent, was heard and determined by the Supreme Court. Applicant avers that during the course of the hearing, it became apparent that the judgment was defective in its operative part, and consequently the appeal was struck from the roll.

The applicant further contends that the basis for the Supreme Court's concern relating to the defect in the judgment was advanced by the first to fourth respondents themselves. He submits that, for this reason, it became necessary for the judgment to be remitted back to the

court a *quo* for correction before the appeal under SC 656/25 could properly be determined by the court *a quo.* The applicant further avers that, following the above, he and the sixth respondent approached the High Court for the correction of the judgment. He states that the relevant applications remain pending and have not yet been determined.

The applicant further avers that he is surprised that, notwithstanding the first to fourth respondents' knowledge that the judgment is erroneous or defective, they proceeded to execute the same judgment.

In response, the fourth respondent, in her capacity and on behalf of the first to third respondents, filed a Notice of Opposition. The first to fourth respondents raised points *in limine*, indicating that the applicant's application for a stay of execution should not be granted. The points *in limine* are that the matter is not urgent; the application is moot; the application is fatally defective and that costs have not been paid in HCHF 1369/26.

URGENCY

The first to fourth respondents contend that the applicant failed to act promptly. Their argument is that the need to act arose at the time when the appeal in case number SC 652/25 was deemed abandoned and not only when the writ of execution was issued.

This court is satisfied that the matter is urgent. The applicant has not sat on his laurels. Considered against the timelines disclosed in the papers, the applicant acted within a reasonable time after the Supreme Court appeal was dealt with, and thereafter took steps in this Court to seek correction of the operative part of the judgment sought to be executed. The need for interim relief therefore crystallised in the context of the appellate outcome and the subsequent correction proceedings that remain pending. In these circumstances, it cannot be said that urgency is manufactured or that the applicant sought to invoke urgency opportunistically, hence the point in limine is dismissed.

MOOTNESS

The first to fourth respondents indicate that the applicant no longer holds the title to the property. The first to fourth respondents allude that the cancellation of the title occurred on 4 March 2026 and according to the first to fourth respondents, there is a deed of transfer which revived the title of the first to the fourth respondents. The first to fourth respondents

indicate that a person with no title cannot seek to stay eviction simply because they are in occupation hence the matter is now moot.

Considering the circumstances, it is not correct to say that the case no longer presents a live issue for this Court's determination. In the case of *Khupe & Anor* v *Parliament of Zimbabwe & Ors* 2019 (3) ZLR 915 (CC) the court underscored that the position of the law is that a court hearing a matter will not readily accept an invitation to adjudicate on issues which are of 'such a nature that the decision sought will have no practical effect or result.' Execution of a judgment that is under correction proceedings cannot be treated as a matter that has automatically become academic. The stay sought is interim in nature and is directed at preserving the position pending the resolution of the correction applications still pending before this Court. This court therefore emphasises that, when the Court grants a stay, it does not finally determine ownership or entitlement; rather, it ensures that the purpose of pending proceedings is not undermined by premature execution. For that reason, the interim character of a stay must be understood to mean that the dispute remains alive for present purposes, particularly where execution would potentially render the pending correction exercise nugatory. Therefore, the point in limine on mootness is dismissed.

THE APPLICATION IS FATALLY DEFECTIVE

First to fourth respondents indicate that the applicant filed the application in terms of Rule 60(1) and (6) of the High Court Rules,2021 yet according to the first to fourth respondents, nothing in those rules gives the applicant the right to specify a *dies inducia* of three days.

Again, this Court is not inclined to entertain technical objections that do not prejudice any party or defeat the real issues for adjudication. In *Marick Trading (Pvt) Ltd* v *Old Mutual Life Assurance Co of Zimbabwe (Pvt) Ltd & Anor* HH 667/15 on page 1 the court indicated that "the determination of cases on the merits should not be impeded or stalled unnecessarily for failure to follow the rules." The Court has not been shown that any departure from the respondents' preferred procedural framing has impaired their ability to oppose the application or that it has materially undermined the Court's ability to decide the urgent relief sought. Therefore, the point *in limine* is dismissed.

NON-PAYMENT OF COSTS IN HCHF 1369/26

The first to fourth respondents indicate that the applicants filed an urgent chamber application under case number HCHF1369/26 seeking the same relief of stay of execution and the court ruled that the application was fatally defective hence it was struck off the roll with costs and first to fourth respondents indicate that the payment of costs has not been done, therefore this current application should be struck off the roll because of that outstanding non- payment of costs.

The point regarding non-payment of costs in HCHF 1369/26 is not meritorious as a ground to dismiss the present application without more. While the payment of costs ordered by a Court is important, the Court is not persuaded that non-payment alone, without a proper evidential foundation showing that it bars the hearing of this application, warrants striking the matter off the roll at the threshold. The Court therefore refuses to allow this point to operate as an automatic bar to a determination of urgent interim relief.

In all the circumstances, and for the reasons set out, this Court dismisses all the points *in limine* and will go on to deal with the matter on its merits as an urgent chamber application.

It should be noted that the grant of a stay of execution is not automatic but is subject to the satisfaction of well-established legal principles. An applicant seeking such relief bears the burden of demonstrating that the circumstances of the case warrant the exercise of the court's discretion. In particular, the applicant must establish that the interests of justice would be best served by the grant of a stay and that, if the stay is refused, there exists a real and substantial risk of injustice or irreparable prejudice that cannot adequately be remedied should the intended proceedings ultimately succeed. Accordingly, the overriding consideration is whether the grant of a stay is necessary to preserve the ends of justice and prevent the occurrence of an injustice pending the final determination of the matter. Again, it should be noted that a stay of execution is, by its very nature, an interim procedural remedy. It does not determine or dispose of the substantive rights of the parties, nor does it amount to a final pronouncement on the merits of the dispute. Rather, its sole purpose is to preserve the existing position so that the Court is afforded the opportunity to hear and determine the pending issues fully and fairly without the proceedings being overtaken by events. The grant of a stay neither extinguishes nor diminishes any party's rights; it merely suspends execution for a limited period until the Court has exercised its judicial function.

In the case of *Rushwaya* v *Bvungo and Anor* HMA 19/17 MAFUSIRE J on page 5 indicated that:

> "In my view, there is some difference between an ordinary, typical or orthodox interdict with a stay. With an ordinary interdict, the applicant must show a clear right in his favour, or, in the case of an interim interdict, a *prima facie* right having been infringed, or about to be infringed; an apprehension of an irreparable harm if the interdict was not granted; a balance of convenience favouring the granting of the interdict, and the absence of any other satisfactory remedy. On the other hand, in a stay of execution the requirement is simply real and substantial justice.

Also, in the case of *Mashamhanda* v *Bariadie Investments Private Limited and Anor* SC17/24, BHUNU JA at page 7 indicated that:

> "the requirements for an application of stay of execution were set out in *Cohen v Cohen* 1979 RLR 184. In that case the court held that, for the court to grant stay of execution it must be satisfied that an injustice would result if stay was not granted. See also *Chibanda* v *King* (1) 1983 ZLR 116. In the words of MAFUSIRE J *in Reef Mining (Pvt) Ltd & Another* v *The Sheriff* HH – 163 – 15, "it would mean justice would turn on its head if stay was not granted"

In *casu*, the applicant has satisfied the well-established requirements for the grant of a stay of execution as articulated in *Cohen* v *Cohen* 1979 RLR 184 and consistently reaffirmed by the superior courts. The applicant has demonstrated precisely the prejudice contemplated in the foregoing authorities. If execution is permitted to proceed before the pending cases presently before this Court are determined, the applicant stands to suffer irreversible prejudice and the proceedings before the Court may be rendered academic. Conversely, the first to fourth respondents suffer no comparable prejudice if execution is temporarily suspended pending the determination of the matters before this Court. The balance of convenience therefore clearly favours the preservation of the *status quo* until the Court has had the opportunity to pronounce itself on the substantive issues.

Granting the stay does not occasion any substantive prejudice to either party. The first to fourth respondents' rights remain intact and capable of enforcement should it ultimately succeed, while the applicant is protected against the risk of irreparable injustice arising from premature execution. The temporary suspension of execution therefore promotes fairness and ensures that neither party gains an unwarranted procedural advantage before the Court determines the issues placed before it.

Accordingly, the court makes the following order:

TERMS OF FINAL ORDER SOUGHT

1. The Provisional order be and is hereby confirmed
2. The first, second, third, fourth and nineth respondents be and are hereby ordered to stay execution of the order under R-HCH 3261/23 handed down as judgment number HH449/25 pending determination of the application for condonation for the late filing of an application for correction of a judgment and an application for correction of a judgment in case numbers HCH 1427/26 and HCH 835/26.
3. First, second, third and fourth respondents jointly and severally the one paying the others to be absolved be and is hereby ordered to pay costs of suit on an attorney-client scale.

INTERIM RELIEF GRANTED

Pending the return of this matter, applicant is granted the following relief:

1. The first, second, third, fourth and nineth respondents be and are hereby ordered to stay the execution of the order under R-HCH 3261/23 handed down a judgment number HH449/25.
2. Each party to bear its own costs.

SERVICE OF THIS PROVISIONAL ORDER

The applicant' s legal practitioners are hereby authorised to serve a copy of this provisional order on the respondents directly or through their legal practitioners of record.

WAMAMBO J……

Madotsa & Partners, Applicant's legal practitioners
Maposa & Ndomene, first to fourth Respondents' legal practitioners
Mawere Sibanda Commercial Lawyers, sixth respondent's legal practitioners